PROPERTY MANAGEMENT AGREEMENT

Windmill Village | Indianapolis, IN

Owner	Windmill Village Owner LLC
Manager	Lumen Residential Services
Property	Windmill Village, 4358 Elm Road, Indianapolis, IN 40124
Agreement Date	December 30, 2022

1. Appointment. Owner appoints Manager as the exclusive managing agent of Windmill Village, and Manager accepts the appointment under the terms of this Agreement. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

3. Management Fee. Manager shall receive a monthly management fee equal to 4.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

7. Spending Authority. Manager may incur expenses not exceeding $460,000 individually without Owner approval, except in an emergency threatening life or property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only